The Offer Term-Sheet Builder

Property: _____ **Date:** _____

Price is one line; the terms are the deal. Fill this in before your attorney drafts the LOI. Your attorney writes the actual LOI.

Part F: Decide and structure.

Takes in: AS-21, AS-08, AS-09, AS-14, AS-01.

Hands to: your attorney, then AS-17.

1. What the seller actually needs

Filled from the motivation section of your call notes (AS-21). The structure pays them in what they value. Ask about conduct and payment history only, never protected characteristics.

Seller type	What they need	What they fear	Their timeline
Estate			
Burnout			
Health			
Tax			
Family conflict			
Tired of tenants			

2. The offer ladder

Step	Price	Notes
Opening		First real number. Leaves room to move.
Target		The number you want to land on.
Ceiling		Pinned to the Walk-Away Pact price. Never above it.

☐ My ceiling sits at or under my Walk-Away Pact (AS-01) price.

3. Give / need

I can give	I need
Speed: close on their timeline	Longer diligence than the contract offers
Certainty: cash, few conditions	Holdback against inspection findings
Clean close: buy as-is where documented	Seller transition and introductions
Seller carry: monthly income after close	Note terms I can live with

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4. Three pre-built structures

A. Quick all-cash

- Full price in cash at close. Shortest diligence ask.
- Seller gets speed and finality. Wins when the seller needs out.

B. Seller-carry heavy

- Smaller cash at close. Seller note for the rest.
- Seller gets monthly income and a spread-out tax picture. Confirm the tax treatment with your CPA; this sheet is not tax advice.

C. Hybrid with holdback

- Cash at close minus a holdback. Holdback releases when findings clear.
- Protects you against the unknown without killing the seller's number.

5. The missing terms (short fields)

Closing date and extension rights: _____

No-shop / exclusivity period: _____

Included assets (homes, equipment, software, phone, website, reviews, vendor contracts): _____

Tenant deposits and prorations: _____

Seller-note: security, subordination, prepayment, default and cure: _____

Price allocation: _____

Holdbacks: _____

Seller reps and survival period: _____

Non-compete: _____

☐ Every blank above gets a line in the LOI. Your attorney writes it.

Non-compete and solicitation rules vary by state. Confirm with your attorney before you rely on one.

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Worked Example: Maple Bend offer ladder (fictional)

Maple Bend Estates. Ask: $1,650,000. Deposits prove $189,000 of annual collections. Seller claims $71,000 of expenses. Deposit-basis NOI: 189,000 - 71,000 = $118,000. Normalized NOI (AS-08): $76,470.

This buyer's Walk-Away Pact price: 76,470 / 0.08 = $955,875. The ladder tops out at the Pact price, never above it.

Step	Price	Math
Opening	$850,000	about 11% under the ceiling
Target	$925,000	where the buyer wants to land
Ceiling	$955,875	at or under the Pact price (checked)

Opening check: (955,875 - 850,000) / 955,875 = 11.1%, about 11% under the ceiling. Gap to ask: 1,650,000 - 955,875 = $694,125 (72.6% over the number). That $694,125 is the gap between the ask and what the evidence supports. About $184,500 of it is phantom rent from the derelict units; the rest is expense and revenue story the seller has not proven (see AS-19). The buyer takes the hybrid structure: cash at close minus a $40,000 utility holdback, released when the bill history and meter readings clear. Earnest money: $25,000, the Pact maximum. The seller's need, from section 1, picks the terms around the number.

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The Doctrine

The offer sheet has one line for price and a dozen lines for terms, and most first-time buyers negotiate the one line. That is the belief this tool shatters: negotiation is about price. The seller of a small park is often selling a life, a tax problem, a health problem, a house full of memories. The winning offer pays them in the currency they need, speed, certainty, monthly income, a clean exit, and costs the buyer little. The ladder is the discipline: opening, target, and a ceiling pinned to the Walk-Away Pact price, so wanting the deal cannot move the number after the walk-through. The one rule: your attorney writes the LOI. The rite of passage is winning a deal below the highest bid because the terms were better.

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